Blackwish Pigeonholing and Unreviewed Authority

How claims become treated as law, policy or settled truth

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Research candidate v2
Not ratified. No deployment authority.

The finding

A matter can become difficult to question without acquiring good evidence, and it can acquire legally operative status without a fresh merits hearing. Those are different pathways. The critical failure is an unearned change of status: a label, repetition, silence, procedural consequence or narrow approval is later represented as substantive proof or broader authority. Pigeonholing often protects an existing assumption from examination; it does not itself enact a law.

This reader is general comparative research, checked on 21 October 2026. Its legal examples concern specified UK parliamentary and U.S. federal procedures, not advice for a particular dispute. None authorizes disregarding a law, deadline or policy. The Blackwish application is a proposal for text-level analysis only, not ratification, deployment, an experiment on people or a safety certification.

1 What pigeonholing does and does not mean

Pigeonholing has two relevant senses: placing something in a restrictive category and shelving it without action. The word also denotes literal nesting or document-storage compartments. Merriam-Webster records a first-known noun use in 1577 and verb use in 1840 in specified senses; these are recorded-use dates, not proof of when every figurative meaning was invented. This ordinary-language inquiry is separate from the mathematical pigeonhole principle. [S01]

Classification can suppress a question: an objection called “merely stylistic” may never receive an evidence review. Shelving can suppress a decision: a proposed correction waits indefinitely while the old rule continues to operate. Neither proves that the objection is correct, that the classification is malicious, or that the proposal became law. Categories can also be accurate, useful and revisable. The diagnostic question is whether the category determines what evidence can be heard before the actual claim has been examined.

The U.S. Senate explains that committees act on only a fraction of referred measures; some are introduced to attract attention or test support, and others duplicate existing work. Non-action therefore has multiple explanations. It can leave the status quo untouched rather than enact the shelved proposal. [S02]

2 Separate the meanings of law and accepted

A legal rule concerns authority and applicability within a jurisdiction. An organizational policy concerns who may set a rule for whom. A scientific law or model describes a regularity under a specified domain and evidential basis. A personal maxim expresses a chosen guide for conduct. A doctrine may be treated as unquestionable in any of these settings, but popularity, legal force, empirical accuracy and personal commitment are not interchangeable.

Six statuses should remain distinct: (1) perceived as true; (2) used as a provisional working assumption; (3) procedurally admitted for a specified proceeding; (4) formally adopted by an authorized decision-maker; (5) legally operative within a jurisdiction and scope; (6) supported by evidence appropriate to the claim. These are not a universal ladder. A proposition can occupy several statuses, or one without the others. “Settled” must name what is settled, by whom, for what purpose and subject to which reopening conditions.

For science, ask about observations, methods, uncertainty, independent evidence, replication where appropriate, and scope-changing or contrary results. Not every claim needs an identical experiment, and qualitative or historical inquiry has its own appropriate checks. Broad agreement may reflect extensive prior scrutiny; agreement alone does not show that it did, and lack of fresh debate does not show that it did not. For authority, additionally identify the act that grants the

status. An adoption record answers a different question from a measurement.

3 Legal and institutional routes that look like acceptance without review

UK negative statutory instruments. The parent Act determines the procedure. Under the negative route, an instrument can take effect without an affirmative parliamentary approval vote, subject to annulment within the statutory period, commonly described as 40 days with specified pauses. Made-negative instruments may come into force before that period ends. Parliament states that negative instruments receive Joint Committee on Statutory Instruments scrutiny. Therefore “no affirmative vote” is not “no enabling authority” or “no scrutiny.” A committee’s legal/technical scrutiny is also not identical to full policy-merits debate. The exact instrument and procedural record matter. [S03]

U.S. federal civil litigation, Rule 36. The rule covers specified facts, the application of law to fact, opinions about either, and document authenticity. A matter may be admitted if the recipient fails to provide a timely signed answer or objection to the request, ordinarily within 30 days, subject to stipulated or court-ordered changes. An admission is conclusive for the pending action unless the court permits withdrawal or amendment under the rule’s conditions. It is not an admission for other purposes or proceedings. This is a particularly clear example of a procedural consequence

without proof at trial, but it is not legislation or a universal declaration of empirical truth. [S04]

U.S. administrative rulemaking, 5 U.S.C. § 553. Ordinary notice-and-comment has exceptions. Good cause under subsection (b)(B) requires an agency finding, incorporated with a brief explanation in the issued rule, that notice and public procedure would be impracticable, unnecessary or contrary to the public interest. The statute separately addresses interpretative rules, policy statements and other categories, and has a separate good-cause provision concerning delayed effectiveness. The existence of an exception does not prove that every use is justified or that all other legal requirements disappear. It is a rule-governed shortcut, not a general license to omit reasons. [S05]

U.S. agency policy statements. ACUS Recommendation 2017-5 explains how legally nonbinding policy statements can nevertheless exert practical pressure: uncertainty, compliance costs, organizational incentives and inflexibility can make departure difficult. Its recommendations preserve opportunities to propose lawful alternatives. The document also recognizes guidance's useful predictability and efficiency. Practical coercive effect and binding legal force must be examined separately. ACUS's recommendation is itself advice about administration, not a statute making all guidance legally binding or invalid. [S06]

Judicial notice is a limiting counterexample. U.S. Federal Rule of Evidence 201 permits judicial notice of adjudicative facts not reasonably disputable because they are generally known locally or readily determined

from sources whose accuracy cannot reasonably be questioned. A party has an opportunity to be heard on timely request, including after notice was taken without advance notification. Civil and criminal jury instructions differ. Avoiding ordinary proof of such a fact need not mean arbitrary acceptance. The procedure specifies the eligible fact and preserves a challenge route. [S07]

Incorporation by reference is not mere citation. NARA distinguishes formally incorporated material from material an agency only mentions. It describes approval of specific versions for specific CFR sections. The handbook explains the approval process and the need to consider reasonable availability and the agency's statutory authority. This can give externally published material a defined regulatory role without reproducing it in full. It does not establish that nobody reviewed it, nor that every later edition or every cited standard has the same status. Inspect the incorporating provision, approved edition and access route. [S08] [S09]

The general lesson is not that procedural economy is illegitimate. It is that visible debate, evidential examination, legal authority and opportunity to contest are different dimensions. To support "without actual review," specify the missing review: source checking, technical merits, policy consequences, affected-party participation or final authorization. A short meeting or an absent vote, by itself, cannot establish the history of all those dimensions.

4 How propositions become socially settled

Repetition and perceived truth. In two experiments, Fazio and colleagues found that repetition increased judged truth even when participants had relevant knowledge available. Their interpretation concerns reliance on processing fluency and occasional neglect of stored knowledge. Repeated exposure can therefore be mistaken for evidential familiarity. This finding does not mean repetition always persuades, that familiar propositions are false, or that a particular person's belief has this cause. [S10]

Citation amplification and source loss. Greenberg's 2009 study examined one biomedical citation network and reported selective citation, expansion by papers adding no relevant data, and shifts from hypothesis to asserted fact through citation. The lesson is to trace a confident summary to the underlying observation and preserve its original qualification. This is one case study, not evidence that scientific consensus generally lacks support. This reader verified the indexed abstract and excerpts, not the complete article or the network independently. [S11]

Informational cascades. Bikhchandani, Hirshleifer and Welch model a situation in which observing earlier actions can make following them optimal while disregarding one's own information. Thus many similar actions need not represent many independent evaluations. It is a formal possibility under model assumptions, not a diagnosis of a real committee or proof that imitation is always irrational. Independent

observations can strengthen a conclusion; copied decisions do not automatically supply them. [S12]

Normalization of deviance. The Columbia investigation described reliance on prior success in place of adequate engineering evidence and the gradual acceptance of foam-shedding deviations. Its account connects classification, communication barriers and organizational history with an accident; it is not a controlled estimate of one isolated psychological cause. Repeated noncatastrophic outcomes can coexist with unresolved hazards. Conversely, a record of successful operation can be relevant evidence when exposure, detection, conditions and failure possibilities are properly examined. [S13]

Automation bias. Skitka, Mosier and Burdick studied 80 undergraduates in a simulated flight-related monitoring task. With a fallible automated aid, participants missed more critical events when the aid omitted a prompt and also followed erroneous prompts despite available contrary indicators. They performed better on events where the aid gave correct directions. The finding supports selective vulnerability to faulty assistance, not a blanket claim that automation makes decisions worse. The retrieved author-uploaded text has OCR defects; the omission and commission findings were cross-checked against the publisher’s indexed abstract, and the correctly aided-event benefit was checked in full-text section 3.4. [S14]

A plausible organizational chain, offered here as synthesis rather than a newly demonstrated universal mechanism, is: a restrictive label reduces attention; a provisional summary omits its uncertainty; others cite

the summary; routine operation makes the claim feel normal; a workflow treats the inherited status as permission. Any link can fail. The task is to locate the actual transition and its evidence, not diagnose a whole institution from the presence of one label or repeated phrase.

5 Six concrete hypothetical challenges

All six scenarios below are invented analytical examples. They are not reports about Blackwish users, experiments, legal determinations or predictions.

1. The shelved safety objection. A committee files “the valve can stick” under “presentation feedback” and keeps using the existing design. The filing did not refute the defect or create a new engineering law; it prevented a particular question from reaching the right review. Counterchallenge: if inspection establishes that the note only concerns label placement, that category may be accurate. Reclassification needs claim-level evidence, not an automatic presumption that every shelved objection is right.

2. The five-source illusion. Five reports endorse a numerical threshold, but all copy the same preliminary estimate. Five endorsements are not five independent measurements. Counterchallenge: if three reports independently measure the relevant outcome under appropriate conditions, their agreement may genuinely strengthen support. Count evidence-producing paths, not just documents, and do not discard real

convergence merely because some sources share a citation.

3. The quiet approval. A board approves a routine policy at a short meeting after members received a technical review, comments and a change log. No fresh discussion does not show no substantive review. Conversely, a thick packet and “review complete” checkbox do not prove it was read or critically examined. The correct record names which review occurred, by whom and at what scope; elapsed time and page count are weak substitutes.

4. The borrowed ratification. A user approves version 2 for internal comparison. Version 3 adds automatic actions, but the header still says “approved.” The earlier authorization does not travel merely with the title. Counterchallenge: correcting a typo without altering the approved meaning need not restart every review. Preserve identity and compare material scope; seek a new decision for material additions rather than treating every byte change as a constitutional crisis.

5. The quiet dashboard. A monitor reports no error, and a team writes “safe.” The monitor may cover only syntax or may have missed the relevant condition. No alert supports only what its detection scope warrants. Counterchallenge: a well-validated monitor can provide useful bounded evidence and outperform unaided checking. The repair is calibrated reliance and an identified residual gap, not rejecting tools or demanding certainty that no method can provide.

6. The local rule promoted into a universal law. A team adopts “prefer the shorter route” to make an interface easier to navigate. Someone later treats that

choice as proof that the shortest route always has the best outcome. A route with stairs, missing permissions or greater hazard defeats the universal inference without disproving the original interface preference. Counterchallenge: within a defined, checked set where relevant constraints are equal, length may legitimately decide. Preserve the domain rather than either universalizing or abolishing the rule.

6 A limited Blackwish application status before authority

The following is a proposed analytical aid, not newly operative doctrine. Use it when a consequential claim is being promoted into a stronger status, not as a mandatory form for every sentence or creative interpretation.

Keep a compact record with seven fields: exact proposition and version; intended domain and use; current status; evidence and dependence among sources; review actually performed and unresolved objections; authority-bearing decision with its exact scope; and conditions for reopening. A documented negative finding, a hypothetical challenge, a source summary and an observed counterexample should remain different evidence types. A contradiction deserves a stated resolution or an unresolved status, not silent disappearance.

Prepared means a candidate exists. Presented means it was made available. Read requires an appropriate basis for that assertion, not merely delivery. Reviewed names an examination and its scope. Adopted names a

decision by the appropriate authority. Deployed names an implementation event. Safe is a separate claim requiring conditions and evidence. One label must not silently imply the others. Explicit approval can establish authorization without proving comprehension or empirical correctness.

Preserve the exact manual approval and identify the version, meaning and allowed use it covered. Approval of a method, a branch or an earlier version is not blanket approval of everything adjacent. Personality, inferred trust, familiarity, silence, continued discussion and apparent enthusiasm are not substitutes for the required decision. The user’s authorization to conduct internal text analysis and hypothetical challenges is not authority to deploy resulting revisions.

Separate reviewer independence from source independence. Two reviewers can independently check the same document, which may help detect interpretation errors, while still drawing on one underlying experiment. Three perspectives written by one author are not three independent reviewers. A matching hash establishes file identity, not that anyone read the file, that its claims are true, or that it is safe to implement.

Reuse prior review proportionately. If the source, claim, scope and relevant conditions are unchanged, record the inherited review and examine the affected change instead of beginning again. Reopen when material evidence, applicability, authority, consequences or source integrity changes. Stop when the stated question has adequate support at its declared scope, material objections have an explicit disposition, and remaining

uncertainty is visible. “No change warranted,” rejection and provisional use are legitimate outcomes. Infinite re-review is not the goal.

The strongest objection to this aid is that it could itself become a bureaucratic stamp: an elaborate record might create confidence without improving understanding. Keep it small, attach the actual reasoning where needed, and judge it by whether it preserves a decision-relevant distinction. Do not convert this proposed safeguard into another unquestionable law.

7 What the research does not establish

These sources show several distinct routes to apparent or actual settlement, not their prevalence across all institutions and not a single hidden mechanism behind them. No particular person or organization is accused of bad faith. No independent replication of the cited experiments, complete legal survey, full Blackwish historical-canon audit or measurement of this proposed method’s effectiveness was performed. Direct full-text access failed for Greenberg; the study’s summary remains explicitly abstract-level. Historical sources and older experiments keep their dates. Any later legal use requires checking the applicable text and facts.

Bottom line: ask what became settled, by which process, on what evidence, at which version and scope, and what could reopen it. Preserve the difference between a sound shortcut and a missing justification. A proposition can be lawful without being scientifically established,

well-supported without being formally adopted, and provisionally useful without being unquestionable.

Review provenance

This PDF presents the complete research candidate v2 as one reader. Its three author-applied review lenses address meaning and status; authority, jurisdiction and provenance; and outcome, independence and attention cost. These are perspectives from one author, not three independent reviewers or empirical replications.

The author comparison covered five named Blackwish ratification records, not the complete historical canon. A separate content review examined all 37 reader blocks, checked fragile claims against primary or official sources, and consulted two contextual method records. It found no unresolved material content defect for bounded research presentation.

This was not external expert verification, empirical replication, a complete legal survey or a full historical-canon audit. It does not ratify the proposal or authorize deployment.

Source access and limits

Source links appear beside the relevant claims and in the entries below. Retrieval depth, edition dates and page locators are retained so the scope of each check remains visible.

S01 Merriam-Webster: pigeonhole

Accessed 2026-10-21. Lexicographic reference. Definitions and word-history section directly retrieved. Locator: Verb senses 1b and 2; noun senses; Word History.

S02 U.S. Senate: Committee Functions

Accessed 2026-10-21. Official institutional description. Full webpage retrieved. Locator: Opening paragraphs.

S03 UK Parliament: statutory instruments procedure in the Commons

Accessed 2026-10-21. Official procedural explanation, UK. Full webpage retrieved. Locator: Negative procedure; Made negative SIs; Process to stop a negative SI.

S04 Federal Rules of Civil Procedure: Rule 36

Edition effective December 1, 2025; checked 2026-10-21. Official U.S. federal rules. Official full PDF retrieved; operative Rule 36 inspected. Locator: Printed pages 60-61, PDF indices 78-79.

S05 5 U.S.C. § 553: rulemaking

Checked 2026-10-21; text records amendment July 25, 2023. Official U.S. Code text. Official linked section PDF retrieved. Locator: Subsections (b), (c), (d), (e).

S06 ACUS Recommendation 2017-5: Agency Guidance Through Policy Statements

Adopted December 14, 2017; published December 29, 2017. Official recommendation and institutional analysis, not legislation. Official Federal Register full PDF retrieved after ACUS direct fetch failed. Locator: 82 FR 61734-61737, PDF indices 6-9.

S07 Federal Rules of Evidence: Rule 201

December 1, 2025 edition; checked 2026-10-21. Official U.S. federal rules. Official full PDF retrieved; Rule 201 inspected. Locator: Printed page 3, PDF index 17.

S08 NARA: Incorporation by Reference in the CFR

Page reviewed August 21, 2024; checked 2026-10-21. Official U.S. publication and access explanation. Full webpage retrieved. Locator: Opening description and Locating IBR material.

S09 NARA: Incorporation by Reference Handbook

June 2023 edition, editorial revisions through August 28, 2023; checked 2026-10-21. Official U.S. drafting guidance. Full webpage and chapter V PDF retrieved. Locator: Introduction to IBR; current edition statement.

S10 Fazio et al. (2015): Knowledge Does Not Protect Against Illusory Truth

2015; DOI 10.1037/xge0000098. Original experimental psychology paper. Full published article PDF retrieved from university host. Locator: Abstract; experiments and general discussion.

S11 Greenberg (2009): How citation distortions create unfounded authority

July 20, 2009; DOI 10.1136/bmj.b2680. Original citation-network study. PubMed indexed abstract and BMJ indexed excerpts retrieved; direct full-text retrieval failed. Locator: Abstract, especially Results and Conclusion.

S12 Bikhchandani, Hirshleifer and Welch (1992): Informational Cascades

Journal of Political Economy 100(5), 992-1026, 1992. Original formal economic model. Full published article PDF retrieved from Stanford teaching archive. Locator: Abstract and introductory model exposition.

S13 Columbia Accident Investigation Board Report, volume I

August 2003. Official accident investigation. Full official PDF retrieved from NASA linked archive; relevant passages inspected. Locator: Executive summary; printed pages 130, 181, 196-197.

S14 Skitka, Mosier and Burdick (1999): Does automation bias decision-making?

1999; publisher Publisher page. Original experiment, author-uploaded published text. Author-uploaded full text retrieved with OCR defects; omission and commission findings cross-checked against publisher-indexed abstract; correctly aided-event benefit checked in full-text section 3.4. Locator: Method; Results 3.2, 3.3, 3.4; publisher DOI 10.1006/ijhc.1999.0252.